HEADNOTE

> *"Rule 262.1(b) RoP requires a concrete and verifiable, legitimate reason for making available written pleadings and evidence upon a request by a member of the public. To be informed of the proceedings before the Unified Patent Court for the purposes of education and training is not a legitimate reason as required by Rule 262.1(b) RoP. It is also insufficiently concrete and verifiable. No legal basis to give access to letter for service."*

COURT
Central Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP3056563

Method of producing retinal pigment epithelial cell

KEYWORDS

- Rule 262.1(b) RoP request (rejected)
- Legitimate reason for access (no)
- No legal basis for access to letter for service

Rule 262 Public access to the register

SUMMARY
The Central Division in Munich issued a procedural order. The patent at issue relates to a method of producing retinal pigment epithelial cell. According to the headnotes of the decision, Rule 262.1(b) of the Rules of Procedure requires that any request from the public to access written pleadings and evidence must be supported by a concrete and verifiable legitimate reason. The court clarified that a general interest in learning about UPC proceedings for educational or training purposes does not meet this threshold of legitimate reason. The decision further establishes that such educational interest is also too vague and unverifiable to satisfy the procedural requirements. The court found no legal basis to grant access to the letter for service under these circumstances.